Kinderloop Privacy Policy

October 2026

1. Kinderloop Asia Pacific Pty Ltd ACN 165 394 669 ("**KAP**", "us", "we", or "our") operates Kinderloop mobile applications "Kinderloop" and "Kinderloop Plus" (the **App/Apps**) and the website http://kinderloop.com (**Our Website**), together the **Products**.
2. The Product enables a registered childcare centre (**Centre**) and its staff, consultants, directors, advisors and representatives (**Educators**) to communicate with a child's parents, guardians and other family members approved by any parent or guardian (**Family Members**), regarding the child's activities.
3. All communication between a Centre and Family Members using the Products is via a personal electronic communication loop (a **Kinderloop**).
4. We provide this Privacy Policy to each person using any Product ("you" or "your").
5. We recognise the importance of protecting your privacy and the privacy of your child. We appreciate your trust and take this responsibility seriously.
6. We adhere to the Australian Privacy Principles contained in the Privacy Act 1988 (Cth) and to the extent applicable, the European Union's General Data Protection Regulation (**GDPR**).

Acceptance of Privacy Policy

7. By accepting this Privacy Policy you agree to these terms and conditions absolutely in their entirety.

Your Personal Information

8. This document informs you of our policies regarding our collection, use and disclosure of "**Personal Information**" we may receive from you when a profile is set up for your child, you create your Account, and/or use the Products. Personal Information is information which is identifiable as being about you, such as your first name and surname, your email address, your username, your password, the name of your child's early childhood centre and your mobile phone number.

Child Personal Information

9. The purpose of the Products is to keep parents, guardians and other family members informed of a child's activities within a registered childcare centre. We handle personal information regarding children under the age of 15 ("**child**" or "**children**").
10. We collect Personal Information that requires verifiable parental/guardian consent under national legislation in multiple jurisdictions including (in Australia) the Privacy Act 1988 (Cth) and (in the USA) the Children's Online Privacy Protection Act 15 U.S.C. §§ 6501–6506 (collectively, "**Child Personal Information**"). Child Personal Information includes for example, name, birthdate, voice, photographic images, video recordings, sound recordings, reports, documents, commentary, and the location of a child.
11. We use Child Personal Information to provide and improve the Products.
12. We use and share Child Personal Information only as described in this Privacy Policy and the Terms of Use available on our Website.

Why we collect Personal Information

13. We collect Personal Information and Child Personal Information to enable us to conduct the business of KAP.
14. We do not provide Accounts for use by children.
15. We provide Accounts for use by adults including parents/guardians, other approved family members, Centres and Educators. You must not provide us with your Personal Information and Child Personal Information if you are under the age of 18 without the consent of your parent or someone who has parental authority for you.
16. We do not collect Personal Information from children under the age of 13 without the consent of the child's parent or guardian.
17. We collect Child Personal Information from parents/guardians and from Centres with the express permission of the parent/guardian, and use it solely for business purposes connected with providing the Products.
18. We do not collect, use, or disclose any Child Personal Information without permission from the child's parents/guardians. That permission may come to us directly (through acceptance of our terms of use) or indirectly (each Centre warrants to us that they have obtained relevant express parental/guardian consent).

KAP use of Personal Information and Child Personal Information

19. A Centre will provide certain Child Personal Information to us when creating a profile about your child (Child Profile).

20. You will provide us with certain Personal Information to create your account (Your Account) in order to use the Products.

Centre use of Personal Information and Child Personal Information

21. You provide your Personal Information and Child Personal Information to the Centre, and the Centre use that information for the following purposes:

(a) creating a Child Profile which must then be activated by the child's parent or guardian;

(b) enabling parents, guardians and other family members to access the Child Profile;

(c) creating and uploading certain content (Content), including:

i. digital recordings of the child including video and sound recordings, photographic images of the child and/or their artistic works, alone and together with other children , Educators, and/or other persons (Child Recordings);

ii. reports, documents and comments concerning your child and their activities;

iii. information about group activities;

iv. Centre information; and

v. Other material,

to the Child Profile, and/or profiles of other children at the Centre (which are accessible by the parents, guardians and certain family members of those other children).

(d) storing, accessing and updating records held by the Centre; and

(e) creating and maintaining records for accreditation purposes.

Processing and storing your Personal Information and Child Personal Information

22. Kinderloop uses Amazon Web Services for platform hosting and storage. Sections 38 and 58A explain where information is stored and which other providers we use. Information is encrypted when it is sent.

Automatic Information

23. We receive and store certain types of information whenever you interact with us and we obtain certain types of information when your web browser accesses Products as described below.

24. When you come to Our Website, we may collect certain information such as browser type, operating system, website visited immediately before coming to our site, etc. This information is used in an aggregated manner to analyse how people use Our Website, such that we can improve our service.

25. We may use cookies on our website. Cookies are very small files which a website uses to identify you when you come back to the site and to store details about your use of the site. Cookies are not malicious programs that access or damage your computer. Most web browsers automatically accept cookies but you can choose to reject cookies by changing your browser settings. However, this may prevent you from taking full advantage of our website. Our Website may from time to time use cookies to analyse website traffic and help us provide a better website visitor experience.

Why we collect your Personal Information and Child Personal Information

26. We may use your Personal Information and Child Personal Information to enable us to do certain things such as:

(a) support the Child Profile to enable you to access a Kinderloop;

(b) manage, research and develop Products;

(c) provide you with information regarding Products;

(d) investigate any complaints.

(e) administer our business activities as described in paragraph 27 below;

(f) communicate with you;

(g) comply with legal obligations as described in paragraph 30 below; and

(h) transfer assets under a sale of business described in paragraph 31 below.

Third Party Service Providers

27. We may engage other persons not connected with KAP (Third Parties) to help us run our business, with database storage and content delivery, improve the Products, provide the Products on our behalf, perform related services and assist us in analysing how our Products are used.

28. We may disclose your Personal Information and Child Personal Information to Third Parties for the purpose of enabling them to perform the tasks described in paragraph 27 above on our behalf, and they will be obligated not to disclose or use your Personal Information or Child Personal Information for any purpose other than as described in paragraph 27 above.

Communications

29. We may use your Personal Information to contact you with information that we believe may be of interest to you such as new developments and additional features available in the Products. You will receive push notifications when using the App and/or an email notification at your registered email address alerting you and family members to new Content uploaded to a Kinderloop. You may opt out of receiving any, or all, of these communications from us by following the unsubscribe link or changing your settings in the App.

Compliance With Laws

30. We will disclose your Personal Information and Child Personal Information where required to do so by law such as by subpoena or warrant, legal proceedings or in response to a law enforcement agency request (including in relation to child protection issues and/or confirmation of identity of users).

Business Transaction

31. In the event that we sell or buy businesses or their assets, or engage in transfers, acquisitions, mergers, restructurings, changes of control and other similar transactions, customer or user information is generally one of the transferable business assets. Thus, your Personal Information and Child Personal Information may be subject to such a transfer.

Insolvency

32. In the unlikely event of insolvency, we may transfer your Personal Information and Child Personal Information to an agent, liquidator, trustee or debtor in possession and/or then to any subsequent purchaser.

Security

33. The security of your Personal Information and Child Personal Information is important to us, but no method of transmission over the Internet, or method of electronic storage is 100% secure. While we strive to use commercially acceptable means to protect your Personal Information and Child Personal Information, we cannot guarantee its absolute security.

General Data Protection Regulation (GDPR) for the European Union (EU)

34. We comply with the principles of data protection set out in the GDPR for the purpose of fairness, transparency and lawful data collection and use.

35. We will only collect your Personal information and Child Personal Information with your express consent for a specific purpose and any data collected will be to the extent necessary and not excessive for its purpose. We will keep your data safe and secure.

36. We may use your Personal information and Child Personal Information if it is necessary to protect your life or in a medical situation, it is necessary to carry out a public function, a task of public interest or if the function has a clear basis in law.

37. We do not collect or process any personal information from you that is considered "Sensitive Personal Information" under the GDPR, such as personal information relating to your sexual orientation or ethnic origin unless we have obtained your explicit consent, or if it is being collected subject to and in accordance with the GDPR.

38. **Where your information is stored**

(a) Kinderloop stores Personal Information and Child Personal Information in Amazon Web Services data centres in Sydney, Australia, including our backups. This applies to every Centre, wherever it is located, so information from Centres outside Australia is transferred to Australia.

(b) Children's records, photos and videos are stored on Kinderloop's platform in Sydney. This includes every video uploaded the usual way.

(c) Long video option: Educators can choose to upload a longer video using the optional long video option. Only videos uploaded this way are stored by Cloudflare Stream in the United States, and they are automatically deleted after 60 days.

(d) Some information is also processed by the following service providers, which help us run Kinderloop:

(i) SendGrid: email addresses and the content of notification emails, to send notifications;

(ii) Intercom: Centre contact details and support messages, to provide customer support;

(iii) Stripe: payment and billing information, to process payments;

(iv) Xero: billing contacts and invoices, for accounting;

(v) Apple and Google: device identifiers (push tokens), to send app notifications;

(vi) OpenAI: the text an Educator writes when using Kinderloop Magic, if the Centre has turned it on;

(vii) Cloudflare Stream: videos uploaded using the optional long video option, deleted after 30 days.

These providers may be located outside Australia, including in the United States. Section 58A gives more detail.

(e) We will give affected Centres at least 90 days' notice before we move customer information or infrastructure to a new country, or allow it to be accessed from a new country.

39. Amazon:

(a) maintains physical, electronic and procedural safeguards in connection with the collection, storage and disclosure of Personal Information and Child Personal Information;

(b) devices offer security features to protect against unauthorised access and loss of data; and

(c) keeps Personal Information / Child Personal Information to enable continued use of Amazon Services, for as long as it is required in order to fulfil the relevant purposes as may be required by law such as for tax and accounting purposes.

Your rights under the GDPR

40. If you are an individual residing in the EU, you have certain rights as to how your Personal information and Child Personal Information is obtained and used. We comply with our obligations under the GDPR as to how your Personal information and Child Personal Information is used and controlled if you are an individual residing in the EU

41. Except as otherwise provided in the GDPR, you have the following rights:

(a) to be informed how your Personal information and Child Personal Information is being used;

(b) access your Personal information and Child Personal Information (we will provide you with a free copy of it);

(c) to correct your Personal information and Child Personal Information if it is inaccurate or incomplete;

(d) to delete your Personal information and Child Personal Information (also known as "the right to be forgotten");

(e) to restrict processing of your Personal information and Child Personal Information;

(f) to retain and reuse your Personal information and Child Personal Information for your own purposes;

(g) to object to your Personal information and Child Personal Information being used; and

(h) to object against automated decision making and profiling.

42. Please contact us at any time to exercise your rights under the GDPR at the contact details in this Privacy Policy.

43. We may ask you to verify your identity before acting on any of your requests.

Access and Correction of Personal Information and Child Information

44. At any time, you may access and correct, any Personal Information and/or Child Personal Information we hold about you or your Child, including requesting us to delete your Personal Information or Child Personal Information. If you would like to obtain such access, please send an email to privacy@kinderloop.com.

45. Please note that the access and correction requirements under this Privacy Policy operate alongside and do not replace other informal or legal procedures by which an individual can be provided access to, or correction of, their Personal Information.

Complaints

46. You may make a complaint to us at any time if you are concerned about any use or misuse of your privacy associated with your use of any Product.

47. In order to lodge a complaint with us, please contact us using the details above with the following information: your name and address, details of the alleged breach of privacy and the URL link to the alleged breach of privacy (if applicable).

48. Please allow us thirty (30) days to investigate your complaint, after which we will contact you to resolve the issue.

Retention of Information - How images and videos of children are taken, used, stored, and destroyed

49. We securely retain information in line with the National Regulations. We may dispose of Personal Information at our discretion without notice, subject to applicable law that specifically requires the handling or retention of information.

Links To Other Sites

50. Products may contain links to other sites that are not operated by us. If you click on a third party link, you will be directed to that third party's site. We strongly advise you to review the Privacy Policy of every site you visit.

51. We have no control over, and assume no responsibility for the content, privacy policies or practices of any third party sites or services.

Changes To This Privacy Policy

52. We may update this Privacy Policy from time to time. When we do, we will post the updated policy on Our Website and let you know through an announcement in the Kinderloop app (the bullhorn).

53. You must review Our Website periodically for any changes to this Privacy Policy. Changes to this Privacy Policy are immediately effective when they are posted on Our Website.

54. If we make a material change, we will tell you through a bullhorn announcement in the app and may also email you or place a notice on Our Website.

Consent

55. You warrant that you are able to give consent or in the event that you do not have the capacity to give consent, you warrant that your guardian or attorney is able to give any consent required under this Privacy Policy on your behalf.

56. You hereby expressly and voluntarily grant your informed consent to us to deal with your Personal Information in accordance with the terms and conditions of this Privacy Policy.

57. This Privacy Policy shall be governed by the Privacy Act 1988 (Cth), laws of the New South Wales and the Commonwealth of Australia and the parties hereby submit to the non-exclusive jurisdiction of the Courts of New South Wales.

AI

58. Kinderloop Magic is an optional AI writing tool that a Centre may turn on for its Educators. When an Educator uses it, only the text they have written is sent to OpenAI OpCo, LLC, a US company, to suggest improvements. No title, profile details, photos or videos are sent. The text is sent exactly as written, so any names or personal information the Educator types will be sent too.
OpenAI may keep the text for up to 30 days to check for misuse, and longer where required by law or in limited other circumstances set out in OpenAI's terms. Our OpenAI account is not limited to one country, so the text may be processed in the United States or elsewhere. OpenAI does not use content sent through its API to train its models unless the customer chooses to share it, and Kinderloop has not chosen to share content with OpenAI.
Educators should leave out unnecessary personal details and check every suggestion before using it.
Kinderloop accepts no responsibility for any losses or damages occurred by use of this feature; it is intended as an aid to assist staff when writing posts within Kinderloop.

58A. Our service providers. We use these providers to run Kinderloop:

Provider	What for	What they receive	Where	Privacy info
Amazon Web Services	Hosting and backups	Platform records, photos, videos (except long-video uploads) and documents	Australia (Sydney)	aws.amazon.com/privacy
OpenAI OpCo, LLC	Kinderloop Magic	Text educators write, including any names typed	United States and other countries	openai.com/policies/privacy-policy

Provider	What for	What they receive	Where	Privacy info
Twilio SendGrid	Notification emails	Email addresses and email content	United States	twilio.com/legal/privacy
Intercom	Customer support	Centre contact details and support messages	United States	intercom.com/legal/privacy
Cloudflare Stream	Long video option	Long-option videos, which may show children; deleted after 30 days	United States (stored); delivered globally	cloudflare.com/privacypolicy
Stripe	Payments	Payment and billing information (card details handled only by Stripe)	United States and other countries	stripe.com/privacy
Xero	Accounting	Billing contacts and invoices	United States	xero.com/legal/privacy
Apple and Google	App stores and push notifications	Device push tokens	Global	apple.com/legal/privacy; policies.google.com/privacy

If you have any questions about this Privacy Policy, please send an email to – privacy@kinderloop.com